

23STCV30161 23STCV30161

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Case Number: 23STCV30161 Hearing Date: September 22, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September

22, 2026

CASE NAME: Jazmin

Copeland v. State of California Department of Public Health, et al.

CASE NO.: 23STCV30161

MOTION

TO QUASH SECOND AMENDED COMPLAINT

MOVING PARTY: Defendant

California Department of Social Services; Defendant Emergency Medical Services

Authority

RESPONDING PARTY(S): Plaintiff Jazmin Copeland

REQUESTED RELIEF:

1. An

order quashing the second amended complaint.

TENTATIVE RULING:

1. Motion

to quash second amended complaint are DENIED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On December 11, 2023, Plaintiff Jazmin Copeland (Plaintiff) filed a complaint against Defendants State of California Department of Public Health (DPH), NRS Staffing LLC (NRS), and Evolve Healthcare, Inc. (Evolve) (sometimes collectively Defendants) with 10 causes of action for: (1) discrimination based on race; (2) harassment based on race; (3) discrimination based on sex; (4) sexual harassment; (5) failure to maintain a discrimination free environment; (6) retaliation; (7) violation of Lab. Code § 1102.5; (8) failure to pay hourly and overtime wages; (9) failure to provide meal periods of compensation in lieu thereof; and (10) failure to provide rest periods or compensation in lieu thereof.

According to the complaint, Plaintiff alleges she was subjected to ongoing racial discrimination, wage-and-hour violations, and a hostile work environment by coworkers and supervisors at the TVRC facility, including being isolated, falsely accused, and denied legally required breaks and overtime pay. She further alleges that her direct supervisor engaged in repeated, severe sexual harassment and inappropriate conduct—including explicit comments, unwanted touching, and showing graphic photos—and that management failed to take corrective action after she reported it. After making internal complaints about discrimination, harassment, and labor violations, Plaintiff claims she was retaliated against and ultimately terminated under a pretextual justification.

On February 1, 2024, Plaintiff filed a first amended complaint (FAC) against the same parties with the same causes of action.

On March 15, 2024, DPH filed a motion for change of venue which the court DENIED.

On March 18, 2024, DPH filed a demurrer to the FAC which the court SUSTAINED, in part, with leave to amend.

On June 25, 2024, DPH filed an answer.

On July 24, 2025, the parties filed a stipulated protective order which the court GRANTED.

On November 20, 2025, Plaintiff filed a motion for leave to file a second amended complaint (SAC) which the court GRANTED.

On January 7, 2026, Plaintiff filed the operative SAC. Plaintiff added Defendants California Department of Social Services (CDSS), California Department of General Services (CDGS), and California Emergency Medical Services Authority (EMSA). Plaintiff expanded allegations to include those obtained via discovery as well as an amended administrative exhaustion allegation.

On March 13, 2026, CDSS filed a motion to quash the SAC.

On March 19, 2026, EMSA filed a motion to quash the SAC.

On April 10, 2026, CDGS filed a demurrer to the SAC which the court OVERRULED.

On May 20, 2026, Plaintiff filed an opposition to the CDSS' motion to quash. On May 27, 2026, CDSS filed a reply.

On July 7, 2026, CDGS filed an answer.

On July 30, 2026, Plaintiff filed an opposition to EMSA's motion to quash. On August 5, 2026, EMSA filed a reply.

LEGAL STANDARD:

"When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint...and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly." Code Civ. Proc., § 474. "Improper service of a defendant under section 474 may be attacked by a motion to quash." *McClatchy v. Coblenz, Patch, Duffy & Bass, LLP* (2016) 247 Cal.App.4th 368, 375 (*McClatchy*).

ANALYSIS:

CDSS and EMSA contend relief is proper because Plaintiff knew they were possible defendants in this matter prior to May 3, 2022 and so the statute of limitations had run before she amended her complaint to add them in. As to CDSS, Plaintiff's testimony indicates she knew CDSS was on site and EMSA was on her timesheets. Finally, they contend they suffered prejudice due to Plaintiff's delay because they could not conduct preserve evidence like Plaintiff could.

Plaintiff argues that her generalized awareness that outside staffing entities does not show that she knew CDSS or EMSA had contractual, supervisory, or operational structure involvement until the October 22, 2025 document production. She adds that she had no duty to investigate what the initials "EMSA" meant and that simply being aware of the organizations was not actual knowledge of her claims against them.

CDSS and EMSA reply that Plaintiff's arguments miss the mark since the standard is actual ignorance of them as defendants and not ignorance of a cause of action. They add that she failed to address prejudice.

The only relevant inquiry is whether the plaintiff "had actual knowledge of the basic facts giving rise to her claim" against the defendant. (*General Motors Corp. v. Superior Court* (1996) 48 Cal.App.4th 580, 588 (*General Motors*); *McClatchy*, supra, 247 Cal.App.4th at pp. 371-372.) "In keeping with this liberal interpretation of section 474, it is now well established that even though the plaintiff knows of the existence of the defendant sued by a fictitious name, and even though the plaintiff knows the defendant's actual identity (that is, his name), the plaintiff is 'ignorant' within the meaning of the statute if he lacks knowledge of that person's connection with the case or with his injuries." (*General Motors*, supra, 48 Cal.App.4th at p. 593-594; see also *McClatchy*, supra, 247 Cal.App.4th at p. 371-372 [noting this procedure (Section 474) is only available when the plaintiff is actually ignorant of the facts establishing a cause of action against the party to be substituted in as a doe defendant.]) "The fact that the plaintiff had the means to obtain knowledge is irrelevant." (*Id.* at p. 594.) "Section 474 allows a plaintiff in good faith to delay suing particular persons as named

defendants until he has sufficient knowledge of sufficient facts to cause a reasonable person to believe liability is probable.” (Id. [italics omitted].)

“[T]he plaintiff’s knowledge must be tested in the context of the theory of her claim against the new defendant.” (General Motors, supra, 48 Cal.App.4th at p. 597 [citation omitted].) Then, courts consider what facts the plaintiff must show for that claim to be viable against the defendant. (Ibid.)

Third, courts consider the means by which the plaintiff would prove that claim. (Ibid.)

Plaintiff’s claims are rooted in violations as an employer.

(Compl. ¶ 7, FAC ¶ 7, SAC ¶ 6.) Thus, under General Motors and McClatchy, Plaintiff

needed to be actually ignorant of facts that CDSS and EMSA could be joint employers subject to liability. After reviewing the evidence submitted by the parties, it appears Plaintiff did not have actual knowledge of facts that CDSS or EMSA could be joint employers until after the October 22, 2025 production.

As to CDSS, the evidence shows Plaintiff was aware of their presence at the TVRC. (Declaration of Nancy Droege ¶ 2, Exhibit A [deposition transcript excerpts.]) This evidence shows Plaintiff knew that two people at the site worked for CDSS. (Ibid. 181:18-22 [Adriana worked for CDSS.] 182:12-183:5 [David had a social services badge.]) Plaintiff previously alleged that Adriana/Adrianna was the alleged on-site manager for TVRA (Compl. ¶ 12) and David was allegedly taking over that role. (Compl. ¶ 20.) However, Plaintiff’s evidence shows she (and her counsel) did not know the extent of the contractual relationships between CDSS and the other defendants to impose liability on CDSS as an employer. (Declaration of C. Stephen Love ¶¶ 2, 3, 6, 7, 8, 9, 10.) Indeed, that evidence supports Plaintiff’s position that simply knowing CDSS was present at the TVRC did not mean Plaintiff actually knew CDSS could be liable as a joint employer. (Ibid.) Therefore, Plaintiff did not have actual knowledge of the facts that she had a viable claim against CDSS at the time she filed her complaint..

The analysis for EMSA is similar. To start, Plaintiff did not know what EMSA meant on her timesheets. (Copeland Decl. ¶ 4.) Her attorneys explained the relationship to her after October 22, 2025. (Id. at ¶¶ 8-9.) While she knew that various State agencies and private companies were involved at the TVRC, she did not know which one had authority of her. (Id. at ¶ 10.) This is corroborated by counsel’s declaration that he did not fully understand the

joint employer relationship issue until after receiving the various contracts produced in discovery. (Declaration of C. Stephen Love ¶¶ 2, 3, 6, 7, 8, 9, 10.) Thus, Plaintiff did not have actual knowledge of the facts that she had a viable claim against EMSA at the time she filed her complaint.[1]

Accordingly, the court DENIES the motions to quash.

CONCLUSION:

For
the foregoing reasons, the Court decides the pending motion as follows:

1. Motion
to quash second amended complaint are DENIED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 22, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]
The court declines to develop the prejudice argument in light of this.